

25STCV15489 25STCV15489

County: los-angeles

Division: Civil Law and Motion

Department: O

Hearing date: 2026-08-13

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SM%20%2CO%2C08%2F13%2F2026

Source SHA-256: a9c1534c35a2bb04c8bfb80f7d008e35f09ef49b123859ec9113ec2dc735767e

Case Number: 25STCV15489 Hearing Date: August 13, 2026 Dept: O

TENTATIVE RULING

August 13, 2026

25STCV15489 (Hunter v. Rolling Stone Media LLC, et. al.)

RELEVANT BACKGROUND

On

May 28, 2025, plaintiff James W. Hunter (Plaintiff) filed the initial Complaint. On July 9, 2025, Plaintiff filed the first amended complaint (FAC) against the following defendants: Rolling Stone Media LLC (Rolling Stone); Penske Media Corporation (Penske); Davis, Wright, Tremaine, LLP (DWT); A24 Films LLC (A24); Mia Goth (Goth); Ti West (West); Cheyenne Roundtree (Roundtree); Emilio Gonzalez (Gonzalez); Stephen Franz (Franz); and Jeff Olan (Olan) (collectively, Defendants). Plaintiff alleges six causes of action: (1) Libel; (2) False Light Invasion of Privacy; (3) Aiding And Abetting Defamation; (4) Civil Conspiracy to Commit Defamation and Other Torts; (5) Tortious Interference with Prospective Economic Advantage; and (6) Abuse of Process.

On

October 22, 2025, the Court granted two anti-SLAPP motions, one filed by defendants Roundtree, Rolling Stone, and Penske (collectively, Publisher Defendants), and another filed by defendants DWT, Gonzalez, and Franz (collectively, DWT Defendants). (See 10/22/25 and 10/28/25 Minute Orders.)

On

October 29 and 30, 2025, Plaintiff appealed the Court's October 22, 2025 orders granting the anti-SLAPP motions. (See 10/29/25 and 10/30/25 Notices of Appeal.)

On

April 23, 2026, the Court denied Plaintiff's motion to stay without prejudice.

On

June 4, 2026, the Court granted the Non-Publisher Defendants' motion for attorneys' fees and denied Plaintiff's request to stay enforcement of the fee award. The Court entered a \$64,720.12 money judgment on June 8, 2026.

On

July 7, 2026, Plaintiff filed a notice of appeal challenging the June 8, 2026, judgment, including the fee award and the scope of the judgment entered after the appealed anti-SLAPP order.

INSTANT MOTION

On July 13, 2026, Plaintiff filed the instant motion to stay enforcement of judgment and all post-judgment enforcement proceedings pending appeal. A24 filed an opposition, and Plaintiff filed a reply.

DISCUSSION

Plaintiff's motion is

GRANTED, IN PART, and DENIED, IN PART. The motion is granted with respect to request to stay enforcement of the fee judgment and waive an undertaking. The motion is otherwise denied, including the request for any stay of the judgment-debtor exam, which the Court finds does not constitute "enforcement."

A. Stay Enforcement of Fee Order / Undertaking

"(a) Subject to subdivision

(b), the trial court may stay the enforcement of any judgment or order.

(b) If the enforcement of the judgment or order would be stayed on appeal only by the giving of an undertaking, a trial court shall not have power, without the consent of the adverse party, to stay the enforcement thereof pursuant to this section for a period which extends for more than 10 days

beyond the last date on which a notice of appeal could be filed. (c) This section applies whether or not an appeal will be taken from the judgment or order and whether or not a notice of appeal has been filed.” (Code Civ. Proc., § 918.)

“The trial court may, in its discretion, stay the enforcement of a judgment or order if the judgment debtor has another action pending on a disputed claim against the judgment creditor. (b) In exercising its discretion under this section, the court shall consider all of the following: (1) The likelihood of the judgment debtor prevailing in the other action. (2) The amount of the judgment of the judgment creditor as compared to the amount of the probable recovery of the judgment debtor in the action on the disputed claim. (3) The financial ability of the judgment creditor to satisfy the judgment if a judgment is rendered against the judgment creditor in the action on the disputed claim.” (Code Civ. Proc., § 918.5.)

“The perfecting of an appeal stays proceedings in the trial court upon the judgment or order appealed from or upon the matters embraced therein or affected thereby, including enforcement of the judgment or order, but the trial court may proceed upon any other matter embraced in the action and not affected by the judgment or order.” (Code Civ. Proc., § 916, subd. (a).)

“Unless an undertaking is given, the perfecting of an appeal shall not stay enforcement of the judgment or order in the trial court if the judgment or order is for any of the following: (1) Money or the payment of money, whether consisting of a special fund or not, and whether payable by the appellant or another party to the action. (2) Costs awarded pursuant to Section 998 which otherwise would not have been awarded as costs pursuant to Section 1033.5. (3) Costs awarded pursuant to Section 1141.21 which otherwise would not have been awarded as costs pursuant to Section 1033.5.” (Code Civ. Proc., § 917.1.)

“The court may, in its discretion, waive a provision for a bond in an action or proceeding and make such orders as may be appropriate as if the bond were given, if the court determines that the principal is unable to give the bond because the principal is indigent and is unable to obtain sufficient sureties, whether personal or admitted surety insurers. In exercising its discretion the court shall take

into consideration all factors it deems relevant, including but not limited to the character of the action or proceeding, the nature of the beneficiary, whether public or private, and the potential harm to the beneficiary if the provision for the bond is waived.” (Code Civ. Proc., § 995.240, subd. (a).)

Here, Plaintiff requests orders staying enforcement of the fee order awarding attorney’s fees and waiving or reducing undertaking. Plaintiff argues that a stay with respect to the fee order is appropriate because he has appealed the fee order. Plaintiff cites Code of Civil Procedure section 918.5.

An appeal does not automatically stay enforcement of the attorney’s fee award, and instead, a party seeking a stay must post an undertaking. (Dowling v. Zimmerman (2001) 85 Cal.App.4th 1400, 1434.) But the Court may waive the undertaking pursuant to Code of Civil Procedure section 995.240 where the party is indigent. (Code Civ. Proc., § 995.240.) Here, plaintiff has a fee waiver, which establishes his indigency.

The Court finds that the appeal does not automatically stay enforcement of the fee award absent an undertaking, but the Court, in its discretion, waives the requirement of an undertaking under Code of Civil Procedure section 995.240 and issues the stay with respect to the fee order.

Accordingly, Plaintiff’s motion for a stay is GRANTED, and Plaintiff’s request to waive the undertaking based on indigency is GRANTED.

B. Remaining Requests

In addition to the above, Plaintiff requests “that the Court stay all enforcement activity arising from the June 8, 2026 judgment, including but not limited to judgment debtor examinations, levies, writs of execution, abstracts of judgment, judgment liens, liens in pending actions under Code of Civil Procedure section 708.410, subpoenas or document demands in aid of enforcement, and any other collection activity, pending resolution of Plaintiff’s appeal from the June 8, 2026 judgment.” (Motion a p. 2.)

The Court finds no basis for

Plaintiff's remaining request to stay the judgment-debtor examination, because the Court is not persuaded that this constitutes "enforcement" of the judgment or order within the meaning of the statute.

Accordingly, the remainder of Plaintiff's motion is DENIED.